

IN THE COURT OF COMMON PLEAS

DIVISION

COUNTY, OHIO

Name

Case No.

Street Address

Judge

City

State

Zip Code

Magistrate

Plaintiff

vs.

Name

Street Address

City

State

Zip Code

Defendant

**WARNING: This form is not a substitute for the benefit of the advice of legal counsel.
It is highly recommended that you consult an attorney.**

Instructions: This form is used in response to a filing of a Counterclaim for Divorce with Children, and allows you to agree with or dispute the statements made in the Counterclaim for Divorce with Children. The Court may require additional forms to accompany this document. You must check the requirements of the county in which you file. **YOU MUST UPDATE THE CLERK OF COURTS IF ANY OF THE ABOVE CONTACT INFORMATION CHANGES.**

REPLY TO COUNTERCLAIM FOR DIVORCE WITH CHILDREN

In Reply to Defendant's Counterclaim for Divorce, Plaintiff states as follows:

1. Plaintiff filed a Complaint for Divorce or a Complaint for Legal Separation.
2. Plaintiff alleged proper jurisdiction and venue.

ADMIT DENY

- | | | |
|--------------------------|--------------------------|--|
| ☐ | ☐ | 3. The date of Plaintiff and Defendant's marriage stated in the Counterclaim. |
| ☐ | ☐ | The place of Plaintiff and Defendant's marriage stated in the Counterclaim. |
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| ☐ | ☐ | 4. Neither party is pregnant. |
| ☐ | ☐ | A party is pregnant. |
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| ☐ | ☐ | 5. The child(ren) stated in the Counterclaim was/were born of the relationship prior to the marriage. |
| ☐ | ☐ | The child(ren) stated in the Counterclaim was/were born from or adopted during this marriage. |
| ☐ | ☐ | The child(ren) stated in the Counterclaim was/were born from or adopted during this marriage or relationship and is/are mentally or physically disabled and will be incapable of supporting or maintaining themselves. |
| ☐ | ☐ | The child(ren) stated in the Counterclaim is/are subject to an existing order of parenting or support of another Court or agency. |
| ☐ | ☐ | One party is not the parent of the child(ren) stated in the Counterclaim who was/were born during the marriage. |
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| ☐ | ☐ | 6. Plaintiff is an active-duty servicemember of the United States military. |
| ☐ | ☐ | Defendant is an active-duty servicemember of the United States military. |
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| | | 7. Plaintiff further admits or denies the following grounds for divorce: |
| ☐ | ☐ | Plaintiff and Defendant are incompatible. |
| ☐ | ☐ | Plaintiff and Defendant have lived separate and apart without cohabitation and without interruption for one (1) year. |
| ☐ | ☐ | Plaintiff or Defendant had a Husband or Wife living at the time of the marriage. |
| ☐ | ☐ | Plaintiff has been willfully absent for one (1) year. |
| ☐ | ☐ | Plaintiff is guilty of adultery. |
| ☐ | ☐ | Plaintiff is guilty of extreme cruelty. |
| ☐ | ☐ | Plaintiff is guilty of fraudulent contract. |
| ☐ | ☐ | Plaintiff is guilty of gross neglect of duty. |
| ☐ | ☐ | Plaintiff is guilty of habitual drunkenness. |
| ☐ | ☐ | Plaintiff is imprisoned in a state or federal correctional institution at the time of the filing the Complaint. |
| ☐ | ☐ | Plaintiff procured a divorce outside this state by virtue of which Plaintiff has been released from the obligations of the marriage, while those obligations remain binding on Defendant. |
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| ☐ | ☐ | 8. Plaintiff and Defendant are owners of real estate and/or personal property. |
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| ☐ | ☐ | 9. Plaintiff denies any allegations not specifically admitted. |

Plaintiff requests:

- ☐ the Counterclaim for Divorce be dismissed OR
☐ a divorce be granted
and any further relief deemed proper.

Attorney or Self Represented Party Signature

Printed Name

Address

City

State

Zip

Phone Number

Fax Number

E-mail

Supreme Court Reg No. (if any)

CERTIFICATE OF SERVICE

(Check the boxes that apply)

Plaintiff delivered a copy of the Reply to Counterclaim for Divorce with Children.

On: (Date) _____, 20 _____

To: (Print name of other party's attorney or, if there is no attorney, print name of the party)

At: (Print address or fax number) _____

By: ☐ As instructed in the Request for Service (Uniform Domestic Relations Form 31/Juvenile Form 10) filed with the Clerk of Courts

☐ Regular U.S. Mail

☐ Fax

☐ Hand Delivery

☐ Other: _____

Signature